



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

SB 1110: home confinement; eligibility; electronic monitoring.

POWELL FLOOR AMENDMENT

1. Instructs the director of the Department of Corrections (DOC) to establish the Home Confinement Program (Program), rather than DOC to adopt rules for the Program.
2. Makes subject to available monies allocated specifically for the purpose, the requirement that DOC ensure eligible applicants live where electronic monitoring technology is functional, have equitable access to program requirements and receive assistance in completing program requirements.
3. Removes the authorization for DOC to contract with an entity to evaluate Program effectiveness.
4. Requires DOC to submit a report with specified information to designated members of the legislative and executive branches to determine continuation of the Program.
5. Strikes the retroactivity clause.

POWELL FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1110
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 31-418, Arizona Revised Statutes, is amended to
3 read:

4 31-418. Community supervision fee; deposit; community
5 corrections enhancement fund; drug testing costs

6 A. During the period of time that the prisoner remains on community
7 supervision, the state department of corrections shall require as a
8 condition of community supervision that the prisoner pay a monthly
9 supervision fee of at least ~~sixty-five dollars~~ \$65 unless, after
10 determining the inability of the prisoner to pay the fee, the department
11 requires payment of a lesser amount. The supervising community supervision
12 officer shall monitor the collection of the fee.

13 B. Seventy ~~per cent~~ PERCENT of the monies collected pursuant to
14 subsection A of this section shall be deposited, pursuant to sections
15 35-146 and 35-147, in the victim compensation and assistance fund
16 established by section 41-2407 and thirty ~~per cent~~ PERCENT shall be
17 deposited in the community corrections enhancement fund established by
18 this section.

19 C. The community corrections enhancement fund is established
20 consisting of monies received pursuant to subsection B of this section,
21 sections 31-411, 31-467.06 ~~and~~ 41-1604.08 ~~AND~~ 41-1604.21 and section
22 41-1604.13, subsection D, paragraph 8. The department shall administer
23 the fund and use fund monies to pay for costs related to community
24 corrections.

25 D. In addition to any other fees, the department may require as a
26 condition of community supervision that the prisoner pay the reasonable
27 costs associated with the prisoner's participation in a drug testing
28 program. The prisoner's costs shall not exceed the department's cost for

1 the program. The monies collected pursuant to this subsection by the
2 department may only be used to offset the costs of the drug testing
3 program.

4 Sec. 2. Title 41, chapter 11, article 1, Arizona Revised Statutes,
5 is amended by adding section 41-1604.21, to read:

6 41-1604.21. Home confinement; eligibility; victim
7 notification; conditions; fees; revocation;
8 ratios; applicability

9 A. AN INMATE WHO HAS SERVED AT LEAST ONE YEAR OF THE SENTENCE
10 IMPOSED BY THE COURT IS ELIGIBLE FOR THE HOME CONFINEMENT PROGRAM IF THE
11 INMATE MEETS ALL OF THE FOLLOWING CRITERIA:

12 1. WAS CONVICTED OF A VIOLATION OF SECTION 13-1503, 13-1504,
13 13-1505, 13-1506, 13-2316, 13-2809 OR 13-3107, ANY FELONY OFFENSE IN TITLE
14 13, CHAPTER 16, 18, 20, 21 OR 22 OR ANY CLASS 4, 5 OR 6 FELONY OFFENSE IN
15 TITLE 13, CHAPTER 34 OR 34.1.

16 2. IS WITHIN EIGHTEEN MONTHS OF BEGINNING ANY FORM OF RELEASE FROM
17 INCARCERATION.

18 3. HAS NOT PREVIOUSLY BEEN CONVICTED OF A DANGEROUS CRIME AGAINST
19 CHILDREN AS DEFINED IN SECTION 13-705 OR A SERIOUS OFFENSE OR A VIOLENT OR
20 AGGRAVATED FELONY AS DEFINED IN SECTION 13-706.

21 4. DOES NOT HAVE ANY VIOLENT DISCIPLINARY INFRACTIONS DURING THE
22 CURRENT TERM OF IMPRISONMENT.

23 5. HAS NOT PREVIOUSLY PARTICIPATED IN THE HOME CONFINEMENT PROGRAM
24 PURSUANT TO THIS SECTION.

25 6. DOES NOT HAVE ANY FELONY WARRANTS OR DETAINERS.

26 B. ~~[THE DEPARTMENT SHALL ADOPT RULES OUTLINING THE HOME CONFINEMENT~~
27 ~~PROGRAM. THE RULES]~~ [THE DIRECTOR SHALL ESTABLISH THE HOME CONFINEMENT
28 PROGRAM, AND THE PROGRAM] SHALL INCLUDE ALL OF THE FOLLOWING:

29 1. THE METHOD OF NOTIFYING THE INMATE POPULATION ABOUT THE HOME
30 CONFINEMENT PROGRAM.

31 2. ELIGIBILITY, INCLUDING THE REQUIREMENT FOR AN INMATE TO FIND AND
32 PARTICIPATE IN GAINFUL EMPLOYMENT OR EDUCATION TO QUALIFY FOR THE PROGRAM
33 UNLESS A DISABILITY PREVENTS THE INMATE FROM DOING SO.

34 3. THE APPLICATION PROCESS.

35 4. THE CRITERIA FOR ACCEPTANCE, INCLUDING ANY REQUIREMENTS RELATED
36 TO HOUSING, EMPLOYMENT AND HEALTH CARE.

37 C. [SUBJECT TO AVAILABLE MONIES THAT ARE ALLOCATED SPECIFICALLY TO
38 EFFECTUATE THE PURPOSE OF THIS SECTION.] THE DEPARTMENT SHALL ENSURE THAT
39 ALL ELIGIBLE APPLICANTS RESIDE IN A LOCATION WHERE ELECTRONIC MONITORING
40 TECHNOLOGY IS FUNCTIONAL AND HAVE EQUITABLE ACCESS TO MEET THE HOME
41 CONFINEMENT PROGRAM'S REQUIREMENTS, AND SHALL PROVIDE ASSISTANCE TO
42 APPLICANTS IN COMPLETING ANY PROGRAM REQUIREMENTS.

43 D. WITHIN NINETY DAYS AFTER RECEIVING A COMPLETE APPLICATION FOR
44 THE HOME CONFINEMENT PROGRAM, THE DEPARTMENT SHALL EVALUATE THE
45 APPLICATION AND ENSURE THAT ALL ELIGIBILITY REQUIREMENTS ARE MET.

46 E. THE APPROVAL OF AN APPLICATION IS SUBJECT TO THE INPUT OF THE
47 VICTIM OF THE OFFENSE FOR WHICH THE INMATE IS INCARCERATED. IF ALL

1 CRITERIA ARE MET, THE DEPARTMENT SHALL NOTIFY THE VICTIM WITHIN TEN DAYS
2 AFTER RECEIVING THE VERIFIED APPLICATION. THE DEPARTMENT SHALL GIVE THE
3 VICTIM THE OPPORTUNITY TO PROVIDE ANY FEEDBACK ABOUT THE INMATE AND SHALL
4 REVIEW THE VICTIM'S FEEDBACK WITHIN TWENTY DAYS AFTER RECEIVING THE
5 FEEDBACK. THE VICTIM'S FEEDBACK SHALL BE THE FINAL PORTION OF THE INMATE'S
6 HOME CONFINEMENT APPLICATION.

7 F. ~~[TWELVE MONTHS AFTER THE EFFECTIVE DATE OF THIS SECTION]~~
8 ~~[BEGINNING JANUARY 1, 2031], THE DEPARTMENT [MAY ENTER INTO A CONTRACT~~
9 ~~WITH AN ENTITY TO EVALUATE THE EFFECTIVENESS OF THE HOME CONFINEMENT~~
10 ~~PROGRAM BASED ON]~~ [SHALL PROVIDE A REPORT TO THE GOVERNOR, THE PRESIDENT
11 OF THE SENATE, THE SPEAKER OF THE HOUSE OF REPRESENTATIVES, THE MINORITY
12 LEADERS OF THE SENATE AND THE HOUSE OF REPRESENTATIVES AND THE
13 CHAIRPERSONS OF THE JUDICIARY AND PUBLIC SAFETY COMMITTEES, OR THEIR
14 SUCCESSOR COMMITTEES FOR THE PURPOSE OF LEGISLATIVE REVIEW TO DETERMINE
15 CONTINUATION OF THE PROGRAM. THE REPORT SHALL INCLUDE] ALL OF THE
16 FOLLOWING:

- 17 1. THE TOTAL NUMBER OF ELIGIBLE INMATES.
- 18 2. THE TOTAL NUMBER OF ACTIVE PARTICIPANTS.
- 19 3. THE TOTAL NUMBER OF INMATES THAT RETURNED TO CUSTODY BEFORE
20 COMPLETING THE PROGRAM.

21 G. AN INMATE WHO PARTICIPATES IN THE HOME CONFINEMENT PROGRAM
22 PURSUANT TO THIS SECTION SHALL BE MONITORED BY THE DEPARTMENT THROUGH
23 ELECTRONIC MONITORING SURVEILLANCE, WHICH MAY INCORPORATE WEARABLE
24 TECHNOLOGY USING MOBILE BIOMETRIC AUTHENTICATION, FOR AT LEAST ONE YEAR OR
25 UNTIL THE INMATE BECOMES ELIGIBLE FOR PROBATION OR COMMUNITY SUPERVISION.

26 H. THE DEPARTMENT MAY ORDER AN INMATE TO PAY A MONTHLY HOME
27 CONFINEMENT SUPERVISION FEE IN AN AMOUNT THAT IS DETERMINED BY THE
28 DEPARTMENT UNLESS, AFTER DETERMINING THE INABILITY OF THE INMATE TO PAY
29 THE FEE, THE DEPARTMENT REQUIRES PAYMENT OF A LESSER AMOUNT. THE
30 SUPERVISING CORRECTIONS OFFICER SHALL MONITOR THE COLLECTION OF THE FEE.
31 MONIES COLLECTED SHALL BE DEPOSITED, PURSUANT TO SECTIONS 35-146 AND
32 35-147, IN THE COMMUNITY CORRECTIONS ENHANCEMENT FUND ESTABLISHED BY
33 SECTION 31-418.

34 I. AN INMATE WHO IS PLACED IN THE HOME CONFINEMENT PROGRAM SHALL
35 REMAIN ON INMATE STATUS AND IS SUBJECT TO ALL OF THE LIMITS ON RIGHTS AND
36 MOVEMENT. IF AN INMATE VIOLATES A CONDITION OF THE HOME CONFINEMENT
37 PROGRAM, THE DEPARTMENT MAY REVOKE THE HOME CONFINEMENT AND RETURN THE
38 INMATE TO THE CUSTODY OF THE DEPARTMENT TO COMPLETE THE TERM OF
39 IMPRISONMENT AS AUTHORIZED BY LAW.

40 J. IF AN INMATE IS ARRESTED FOR A SUBSEQUENT FELONY OFFENSE THAT IS
41 COMMITTED WHILE IN THE HOME CONFINEMENT PROGRAM PURSUANT TO THIS SECTION,
42 THE DEPARTMENT SHALL REVOKE THE HOME CONFINEMENT AND RETURN THE INMATE TO
43 THE CUSTODY OF THE DEPARTMENT TO COMPLETE THE TERM OF IMPRISONMENT AS
44 AUTHORIZED BY LAW.

45 K. THE RATIO OF SUPERVISING CORRECTIONS OFFICERS TO SUPERVISEES IN
46 THE HOME CONFINEMENT PROGRAM MAY NOT EXCEED ONE OFFICER FOR EVERY FIFTY
47 SUPERVISEES.

1 L. INMATES WHO DO NOT REACH THEIR TENTATIVE RELEASE DATE AND WHO
2 RETURN TO CUSTODY FOR TECHNICAL VIOLATIONS WHILE PARTICIPATING IN THE HOME
3 CONFINEMENT PROGRAM FORFEIT THEIR TENTATIVE RELEASE AND REMAIN IN CUSTODY
4 UNTIL THEIR EARNED RELEASE CREDIT DATE.

5 M. THIS SECTION APPLIES TO ALL OF THE FOLLOWING:

6 1. FROM AND AFTER DECEMBER 31, 2026 THROUGH MARCH 31, 2027, INMATES
7 WHO HAVE SIX MONTHS REMAINING ON THEIR SENTENCE.

8 2. FROM AND AFTER MARCH 31, 2027 THROUGH JUNE 30, 2027, INMATES WHO
9 HAVE TWELVE MONTHS REMAINING ON THEIR SENTENCE.

10 3. FROM AND AFTER JUNE 30, 2027, INMATES WHO HAVE EIGHTEEN MONTHS
11 REMAINING ON THEIR SENTENCE.

12 <<Sec. 3. ~~Retroactivity~~

13 ~~This act applies retroactively to from and after December 31,~~
14 ~~1993.>>~~

15 Enroll and engross to conform

16 Amend title to conform

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